

23NWCV02768 23NWCV02768

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Case Number: 23NWCV02768 Hearing Date: July 2, 2026 Dept: P

SANDRA GREEN v. ROSE MARIE LEARY, ET
AL.

CASE NO.: 23NWCV02768 / 25NWCV03772

HEARING: 07/02/2026 @ 9:30 AM

#12

TENTATIVE ORDER

I.

Defendant Rose Leary's demurrer and
motion to strike is CONTINUED to Thursday, August 6, 2026 at 9:30 AM in Dept.
P.

II.

Defendant Rose Leary's supplemental
briefing is due by Thursday, July 23, 2026. Plaintiff Jacquelyn Dancy, as
Special Administrator of the estate of Betty J. Green's supplemental briefing
is due by Friday, July 31, 2026. See below for a detailed ruling.

Moving party to give notice.

Defendant Rose Leary demurs to the entire second amended
complaint (SAC) and moves to strike portions of the SAC.

Background

On October 23, 2025, Jacquelyn Dancy, as Special Administrator of the estate of Betty J. Green (Decedent), (Dancy) filed this quiet title action against Sandra Green (Sandra), Rose Leary (Leary), Jocelyn Tyler (Tyler) (collectively, Defendants), and Does 1-50 concerning the real property located at 13614 Behrens Avenue, Norwalk, CA 90650, APN: 8052-011-054 (Subject Property). On October 30, 2025, Plaintiff filed a first amended complaint.

On January 16, 2026, the Court heard Leary's demurrer to the first amended complaint. The Court sustained the demurrer with leave to amend as to the first cause of action for elder abuse, second cause of action for elder abuse, and third cause of action for fraudulent concealment; sustained the demurrer without leave to amend as to the fourth cause of action for unjust enrichment; and overruled the demurrer as to the fifth and sixth causes of action for quiet title and declaratory relief.

On January 23, 2026, the Court granted Dancy's motion to consolidate case no. 25NWCV03772 with case no. 23NWCV02768, with the instant action deemed the lead case.

On January 28, 2026, Dancy filed the operative SAC. The SAC alleges the following: On May 22, 2006, Decedent, mother of Sandra and Leary, conveyed title to the Subject Property through a deed to herself, Sandra, and Leary as joint tenants. (SAC, ¶ 12.) This deed was notarized by Tyler. (SAC, ¶ 12.) Dancy alleges that Sandra and Leary planned to get Dancy out of the house and get Decedent alone to convince Decedent to transfer the Subject Property without Dancy's knowledge. (SAC, ¶ 15.) On March 10, 2009, Leary recorded another deed, notarized by Leary's friend Tyler, in which Decedent transferred her interest to Leary (collectively, Deeds). (SAC, ¶¶ 16-17.) After Decedent passed away on October 5, 2022, no petition was filed because the daughters agreed for Sheila Green (Sheila), daughter of Decedent, to purchase the Subject Property with the proceeds to be split between Decedent's remaining daughters, Sandra, Leary, and Dancy. (SAC, ¶¶ 20-23.) On August 28, 2023, Leary and Sandra filed the Partition Action, of which Dancy was not given notice. (SAC, ¶ 24.) Dancy learned about the facts surrounding the Partition Action from Sheila in May of 2025 and sought appointment to represent Decedent's estate to bring this suit alleging that the Deeds are invalid because they were obtained by fraud and/or elder abuse. (SAC, ¶¶ 25-31.)

The SAC asserts five causes of action: (1) elder abuse - financial against Defendants, (2) elder abuse – undue influence against Sandra and Leary, (3) fraudulent concealment against Sandra and Leary, (4) quiet title against Sandra and Leary, and (5) declaratory relief against Defendants.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) In assessing a demurrer, the court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law.” (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at 747.) A complaint will be upheld against a demurrer if it pleads facts sufficient to place the defendant on notice of the issues sufficient to enable the defendant to prepare a defense. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50.)

“Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) A “[p]laintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Ibid.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the demurring party meet and confer in person, by telephone, or by video conference at least five days before the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve a declaration stating either: (a) “The means by which the demurring party met and conferred...and that the parties did not reach an agreement” or (b) “[t]hat the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 430.41, subd. (a)(3).)

The parties comply with the meet and confer requirement. (Carrillo Decl., ¶¶ 13-15.)

Requests for Judicial Notice

Leary requests the Court take judicial notice of the following:

1.

Certificate of Death of Betty J. Green dated April 25, 2023

2.

Order appointing Jacquelyn Dancy as the special administrator of the Estate of Betty J. Green

Leary's request for judicial notice is GRANTED pursuant to Evidence Code section 452, subdivisions (d), (h).

Dancy requests the Court take judicial notice of the following:

1.

Leary's Demurrer to Dancy's First Amended Complaint

2.

Demurrer Minute Order, filed January 16, 2026

3.

Second Amended Cross-Complaint, filed November 19, 2025

Dancy's request for judicial notice is GRANTED pursuant to Evidence Code section 452, subdivision (d).

Discussion

Leary demurs to the SAC on the grounds that laches bars the entire SAC, the statute of limitations bars the entire SAC, the SAC does not

plead fraud under the heightened pleading requirements, and the SAC fails to allege a claim for elder abuse.

Laches and
Statute of Limitations

Leary argues that laches and the statute of limitations bar the SAC.

As argued by Dancy in opposition, the Court already heard and ruled upon Leary's laches and statute of limitations arguments in its ruling for the demurrer to the FAC. The Court ruled that neither laches nor the statute of limitations barred the FAC:

Plaintiff brings this action in her capacity as special administrator of the estate of Decedent. As argued by Plaintiff, the earliest that an individual representing the estate had the power to discover the wrongdoing was October 22, 2025. As stated in the complaint, "[t]he Estate had no authority to file suit or seek any recourse until someone was appointed." (FAC, ¶ 25.) Moreover, the complaint alleges Plaintiff, in her individual capacity, learned about the facts giving rise to this action in May of 2025 after talking to her sister Sheila. (FAC, ¶ 21.) The FAC alleges "[n]o on[e] informed PLAINTIFF of any deed issues or transfer at this time." (FAC, ¶ 19.) Therefore, a violation of the statute of limitations does not appear from the face of the pleadings.

(Order, 1/16/26.)

Dancy argues that Leary's arguments are barred by issue preclusion. " "Traditionally, collateral estoppel has been found to bar relitigation of an issue decided at a previous proceeding 'if (1) the issue necessarily decided at the previous [proceeding] is identical to the one which is sought to be relitigated; (2) the previous [proceeding] resulted in a final judgment on the merits; and (3) the party against whom collateral estoppel is asserted was a party or in privity with a party at the prior proceeding.' " (Daar & Newman v. VRL International (Daar) (2005) 129 Cal.App.4th 482, 489.) As argued by Leary in reply, the ruling on the first demurrer does not constitute a "final judgment on the merits." (Ibid; 640 Octavia LLC v. Walston (2025) 111 Cal.App.5th 861, 873 ["Because the judgment of dismissal on plaintiffs' complaint was

merely interlocutory, and appellate review was not yet available, neither claim nor issue preclusion prohibited litigation of the claims raised in defendants' cross-complaint."].) Therefore, these arguments are not barred by issue preclusion.

Leary points to authorities permitting a trial court to consider a demurrer to previously overruled causes of action. "[A] party is within its rights to successively demur to a cause of action in an amended pleading notwithstanding a prior unsuccessful demurrer to that same cause of action." (Carlton v. Dr. Pepper Snapple Group, Inc. (2014) 228 Cal.App.4th 1200, 1211; Pavicich v. Santucci (2000) 85 Cal.App.4th 382, 389, n. 3.)

The Court notes that upon review, the allegations giving rise to Leary's laches and statutes of limitations arguments remain unchanged, and to that extent, the ruling remains. The Court only addresses Leary's survivor claim argument, as Leary expands on it in the instant demurrer.

"Unlike a cause of action for wrongful death, a survivor cause of action is not a new cause of action that vests in the heirs on the death of the decedent. It is instead a separate and distinct cause of action which belonged to the decedent before death but, by statute, survives that event." (Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1264.) "Except as otherwise provided by statute, a cause of action for or against a person is not lost by reason of the person's death, but survives subject to the applicable limitations period." (Code Civ. Proc., § 377.20, subd. (a).) Leary argues that based on Decedent's knowledge of the facts giving rise to her claims, the statute of limitations has run.

Upon review and based upon the expanded arguments by Leary, the Court finds that this action is governed by Code of Civil Procedure section 366.1: "If a person entitled to bring an action dies before the expiration of the applicable limitations period, and the cause of action survives, an action may be commenced before the expiration of the later of...(a) [s]ix months after the person's death [or] (b) [t]he limitations period that would have been applicable if the person had not died."

"The statute of limitations usually commences when a cause of action 'accrues,' and it is generally said that 'an action accrues on the date of injury.' [Citation.] Alternatively, it is often stated that the statute

commences 'upon the occurrence of the last element essential to the cause of action.'" (Bernson v. Browning-Ferris Indus. (1994) 7 Cal. 4th 926, 931.) "A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer." (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1319.) Under the delayed discovery rule, a cause of action accrues at the time when the cause of action is complete with all its elements. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 806 807.) The test for when the statute of limitations on a claim starts to run under the delayed discovery rule is "whether the plaintiff has information of circumstances sufficient to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his or her investigation." (McGee v. Weinberg (1979) 97 Cal.App.3d 798, 803.) "Delayed accrual of a cause of action is viewed as particularly appropriate where the relationship between the parties is one of special trust such as that involving a fiduciary, confidential or privileged relationship." (Moreno v. Sanchez (2003) 106 Cal.App.4th 1415, 1424.)

Decedent passed away on October 5, 2022. (SAC, ¶ 20.) The SAC alleges that "[p]rior to Decedent passing, she informed DANCY it was her wish that all her daughters get an equal interest in her PROPERTY and Estate when she died." (SAC, ¶ 21.) Additionally, "[p]rior to Decedent passing, Decedent stated she had no idea her PROPERTY had been transferred out of her name. From that conversation it was clear that Decedent was always under the impression she owned 100% of her PROPERTY." (SAC, ¶ 22.) Moreover, the SAC alleges that "at no point in time did Decedent knowingly agree to or know about deed transfers on her PROPERTY and/or any other tortious acts of DEFENDANTS. This fact is based on...diminished health and the power and position DEFENDANTS had over her." (SAC, ¶ 28.)

Since this action was commenced after six months from Decedent's passing, the limitations period is what would have been applicable had Decedent not died. (Code Civ. Proc., § 366.1, subd. (b).) Claims for elder abuse "shall be commenced within four years after the plaintiff discovers or, through the exercise of reasonable diligence, should have discovered, the facts constituting the financial abuse." (Welf. & Inst. Code, § 15657.7.) Pursuant to Code of Civil Procedure section 338, subd. (d), an action for fraud is subject to a three-year statute of limitations. "The statute of limitations on

a quiet title action depends on the nature of the plaintiff's underlying right to relief." (Arthur v. Davis (1981) 126 Cal.App.3d 684, 690.)

Despite Leary's arguments that Decedent would have had constructive notice in 2006 or 2009, when the Deeds were signed, the SAC alleges that Decedent was vulnerable to undue influence due to her stroke and blindness. (SAC, ¶ 11.) Dancy argues, and the Court agrees, that the SAC alleges that Decedent was never aware of these facts: "Decedent had no idea, she did not own her PROPERTY prior to her passing. Moreover, Decedent trusted ROSE and SANDRA and would sign whatever they put in front of her because of that trust in her daughters." (SAC, ¶ 38.) A reasonable inference from these allegations raises questions regarding Decedent's capacity to discover the alleged Deed transfers during her lifetime. Therefore, based on the SAC, it appears that the causes of action may never have accrued in Decedent's lifetime as she allegedly never discovered the facts giving rise to the injuries.

While Leary argues that the allegations are barred under the statute of limitations, this argument relies on the claims having accrued in Decedent's lifetime. The SAC does not allege that that Decedent discovered these facts in her lifetime. While Dancy argues that Decedent did not discover these facts in her lifetime, Dancy does not show that a statute of limitations can begin after Decedent's death based on Dancy's discovery of the facts.

Given that the statute of limitations is potentially dispositive of the survivor claims and this precise issue is not briefed, the Court finds a continuance warranted to seek further briefing on this issue. Specifically, the Court seeks further briefing on the issue of whether the causes of action as alleged here accrued for purposes of the statute of limitations despite allegations that Decedent never discovered the facts giving rise to her claims during her lifetime.

Accordingly, this demurrer and motion to strike is CONTINUED to Thursday, August 6, 2026 at 9:30 AM in Dept. P.

Leary's supplemental briefing is due by Thursday, July 23, 2026. Dancy's supplemental briefing is due by Friday, July 31, 2026. The Court will only consider briefing related to the stated issue.

On the continued hearing date, the Court will rule on the remainder of the demurrer and motion to strike.